

Rakesh Singh v. State of U.P.

Misc. Bench No. 27324 of 2019 (Allahabad HC, Lucknow Bench)

High Court of Judicature at Allahabad (Lucknow Bench) (HC-DB) | 2019-09-30 | Bench: Pankaj Kumar Jaiswal J, Irshad Ali J (2) | IK doc 51255397 | HC-027 | schema 1.0

Unauthorised use of electricity (Section 126) is the genus and the Section 135(1) acts are species; theft is unauthorised use done dishonestly, so an assessment under Section 126 must be made even in theft cases (with a Section 127 appeal) — the FIR/final report under Section 135 does not bar it, and the Special Court finally determines civil liability under Section 154(6).

GOOD-LAW as of 2026-07 · provision-version OK: True

§126 vs §135: good-law; consolidates the Allahabad DB genus-species line and the Seetaram different-fields distinction.
§127 appeal: good-law on Section 127 appealability of a Section 126 assessment even where the order references Section 135.
Not overruled. Applies the post-2007 Act and the U.P. Electricity Supply Code, 2005.

FACTS & PROFILE

A pharmacy college's premises were inspected; 4 KW was found used unauthorisedly by connecting a cable from the LMV-2 connection, and an FIR under Section 135 was lodged (police later filed a final report). A Section 126 provisional and final assessment (Rs 6.27 lakh) followed, and a recovery demand under the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958 was issued. The consumer challenged the demand, arguing that once an FIR under Section 135 was filed, no Section 126 assessment could be made.

Procedural posture	Writ petition under Article 226 challenging a recovery demand and assessment
Outcome for	licensee
Relief granted	No relief; assessment and recovery upheld.
Consumer category	commercial (pharmacy college)
Fact-pattern	unauthorised-cable-from-LMV2, excess-load, FIR-under-135, final-report-filed, recovery-as-arrears
State	Uttar Pradesh
DISCOM / party	Purvanchal Vidyut Vitaran Nigam Ltd.
Statutory version	post-2007 (Act 26 of 2007) — Section 126(6) '[twice]' tariff, Section 135 with dishonesty, Section 154(5)/(6) Special Court civil liability; U.P. Electricity Supply Code, 2005 (Clause 8.1)

Disposition: Writ petition dismissed; Section 126 assessment is valid even where an FIR under Section 135 exists, and no interference under Article 226 was warranted (Section 127 appeal remedy available).

ISSUES FRAMED

INTERPRETATION OF THE ELECTRICITY ACT

Provisions construed: s.126, s.127, s.135, s.153, s.154(5)/(6)

s.126 / s.135

ratio

post-2007

genus-species

§126 vs §135

§135 mens rea

Unauthorised use of electricity (Explanation (b) to Section 126) is the genus of which the Section 135(1) acts are species; theft is unauthorised use done dishonestly, so a Section 126 assessment must follow whenever there is unauthorised use.

“The unauthorised use of electricity is genus of which the instances detailed in Section 135(1) of the Act, 2003 are species. Theft of electricity is unauthorised use of electricity done dishonestly hence the assessment under Section 126 of the Act, 2003 has to follow whenever unauthorised use of electricity is made by a person or a consumer.”

— para 19

s.126 / s.135

ratio

post-2007

s126-not-excluded-in-theft

§126 vs §135

Neither Section 126 nor Section 135 excludes a Section 126 assessment where the unauthorised use amounts to theft; the sixth proviso to Section 135(1) itself speaks of the 'assessed amount', i.e. the amount assessed under Section 126.

“Section 126 of the Act, 2003 does not indicate that assessment shall not be made if the unauthorised use of electricity becomes a theft. Section 135 of the Act, 2003 also does not give any indication that assessment under Section 126 of the Act, 2003 is not to be undertaken, if there is a theft of electricity.”

— para 19

Reg. 8.1 (UP Code)

ratio

post-2007

code-confirms-s126-for-theft

§126 vs §135

provisional/final

The U.P. Electricity Supply Code, 2005 (Clause 8.1) requires a provisional assessment bill and final assessment even in Section 135 theft cases, confirming that assessment for theft is made under Section 126.

“the provision of the Code, 2005, clearly indicates that for a theft of electricity under Section 135 of the Act, 2003 assessment has to be made under Section 126 of the Act, 2003.”

— para 28

s.154(6)

ratio

post-2007

s154-deposit-is-s126-amount

jurisdiction (§145/§154)

The 'amount deposited by the consumer' in Section 154(6) is the amount deposited under Section 126 — there being no other deposit provision for theft — so Section 126 assessment and the Special Court's Section 154(5) determination coexist.

“The word deposited by the consumer or the person used in sub-section (6) of Section 154 of the Act, 2003 is nothing but an amount deposited by the consumer in accordance with Section 126 of the Act, 2003, since there is no other provision in the Act, 2003 for deposit of the amount by a consumer or the person relating to theft of electricity.”

— para 23

s.126

ratio

post-2007

assessment-despite-fir-final-report

§126 vs §135

§127 appeal

A Section 126 assessment is to be made even where an offence under Section 135 has been made out (FIR/final report notwithstanding); the Special Court finally determines the civil liability, with further action under Section 154(6).

“assessment under Section 126 of the Act, 2003 is to be made even in a case where an offence under Section 135 has been made. In the case involving theft of electricity, assessment has to be made under Section 126 of the Act, 2003 by the Authorised Officer. The Special Court trying an offence is to finally determine the civil liability and after determination of civil liability further action is to be taken in accordance with Section 154(6) of the Act, 2003.”

— para 33

REGULATIONS / SUPPLY CODE CONSTRUED

- **U.P. Electricity Supply Code, 2005, Clause 8.1 (inspection/provisional assessment/hearing/final assessment in theft cases)** — implements s.126/s.135 procedure (made under Electricity Act, 2003 (s.50))

AUTHORITIES CITED

M/s Paliwal Alloys Pvt. Ltd. v. State of U.P. 2009 (7) ADJ 455 · Allahabad High Court (DB)

followed

Cited for: Theft of electricity under Section 135 is fully covered by the definition of 'unauthorised use of electricity' and is an unauthorised use for which assessment is contemplated under Section 126; the scheme does not exclude Section 126 assessment in theft cases (fortified by the third proviso to Section 135(1A)).

“the theft of electricity under Section 135 is also an unauthorised use of electricity for which assessment is contemplated under Section 126 .”

— as quoted in the judgment

Ashok Kumar v. State of U.P. 2008 (6) ADJ 669 · Allahabad High Court (DB)

followed

Cited for: 'Unauthorised use' under Explanation (b) to Section 126 also covers acts constituting a Section 135 offence; no person can be held guilty of unauthorised use without an opportunity of hearing before that conclusion.

“no person can be indicted and held guilty of user of electricity unauthorizedly unless he is given an opportunity of hearing before coming to such conclusion.”

— as quoted in the judgment

M/s Radha Krishna Cold Storage v. State of U.P. Writ Petition No. 19574 of 2008 (Allahabad DB) · Allahabad High Court (DB)

followed

Cited for: An assessment order can be passed only under Section 126; mere non-mention or incorrect mention of the provision does not vitiate it, and the Section 127 appeal remedy is available even if the order references Section 135.

“the order under challenge in the writ petition is the assessment order, which can be passed only under Section 126 of the Act and mere non mention of the relevant provisions or incorrect mention of the provisions will not vitiate the order.”

— as quoted in the judgment

Chairman, WBSEB v. Syed Mukbul Hossain (2009) 2 SCC 727 · Supreme Court

referred

Cited for: In a theft case, the Supreme Court noticed the right of appeal under Section 127 of the Electricity Act, 2003.

RATIO & WHAT WAS DECIDED

§126 vs §135

HC-DB (Allahabad)

affirms

Because unauthorised use (Section 126) is the genus and theft (Section 135) a species, a Section 126 assessment must be made even in theft cases (with a Section 127 appeal); an FIR/final report under Section 135 does not bar it, and the Special Court finally determines civil liability under Section 154(6).

SIGNIFICANCE

An Allahabad Division-Bench authority consolidating the genus-species reading: unauthorised use (Section 126) is the genus and the Section 135(1) acts are species, so Section 126 assessment is mandatory even in theft cases (with a Section 127 appeal), unaffected by the FIR/final report, with the Special Court determining civil liability under

Section 154(6). Draws together the Allahabad line — Paliwal Alloys, Ashok Kumar v. State of U.P. (hearing before conclusion) and Radha Krishna Cold Storage (mislabel does not vitiate) — and references Syed Mukbul Hossain (SC) on the Section 127 appeal.

FLAGS

genus-species: unauthorised use (s.126) = genus; s.135(1) acts = species

s.126 assessment mandatory even in theft; FIR/final report no bar

s.154(6) deposit = s.126 amount; Special Court -> s.154(6)

captures expert-cited authorities: Paliwal Alloys, Ashok Kumar v State of UP, Radha Krishna Cold Storage

Ashok Kumar: hearing required before conclusion of unauthorised use (also cited in HC-011)

expert-cited pool; post-2007-text

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